

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
April 9, 2026
8:30 a.m./1:30 p.m.

7. MICHELLE MASTERS V. GUY SORBER

22FL0424

On January 30, 2026, Petitioner filed a Request for Order (RFO) seeking to enforce the terms of the judgment. All required documents were served on March 10th.

Respondent has not filed a Responsive Declaration to Request for Order. Where a party fails to timely file opposition papers the court, in its discretion, may treat said failure “as an admission that the motion or other application is meritorious.” El Dorado County, Local Rule 7.10.02(C). Here, the RFO was timely and properly served on Respondent. He had notice of the pending request and chose not file an opposition. As such, the court finds good cause to treat his failure to do so as an admission that the claims made in the RFO are meritorious.

Petitioner asks that Respondent be ordered to endorse the check for the proceeds from the sale of the Tya Lane residence. Should he fail to do so within 7 days of the court’s order, Petitioner asks that the title company be ordered to reissue the check to “The Estate of Michelle Masters.”

Petitioner’s requests are granted. Respondent is ordered to endorse the check for the proceeds from the sale of the Tya Lane residence to “The Estate of Michelle Masters.” Should he fail to do so by April 16, 2026, then Petitioner may have the title company reissue the check and have it made out to “The Estate of Michelle Masters.”

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court’s adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #7: PETITIONER’S REQUESTS ARE GRANTED. RESPONDENT IS ORDERED TO ENDORSE THE CHECK FOR THE PROCEEDS FROM THE SALE OF THE TYA LANE RESIDENCE TO “THE ESTATE OF MICHELLE MASTERS.” SHOULD HE FAIL TO DO SO BY APRIL 16, 2026, THEN PETITIONER MAY HAVE THE TITLE COMPANY REISSUE THE CHECK AND HAVE IT MADE OUT TO “THE ESTATE OF MICHELLE MASTERS.”

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT’S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR

LAW & MOTION TENTATIVE RULINGS

DEPARTMENT 5

April 9, 2026

8:30 a.m./1:30 p.m.

BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
April 9, 2026
8:30 a.m./1:30 p.m.

8. MADISON MEXIA V. JOSEPH MEXIA

25FL0339

This matter was continued from January 15, 2026, regarding the Petitioner's Request for Order (RFO) filed October 10, 2025, to set child custody and visitation, child support and spousal support, and issue an award of need-based attorney fees (see Fam. Code, § 2030, et seq.) in the amount of \$6,500.00. At the January 15 hearing, the court (1) ordered both parties to file and serve their current Income and Expense Declarations (I&E) with supporting documentation; (2) referred the parties to a CCRC session set for February 5, 2026; and (3) authorized the parties to utilize a private mediator if they agree to do so.

On March 26, 2026, the Petitioner filed her current I&E, which was electronically served upon the Respondent that same day according to the proof of service, also filed March 26, 2026. Petitioner declares she is unemployed and has zero monthly income.

On April 1, 2026, the Respondent filed his current I&E. However, there is no supporting documentation (i.e., paystubs) attached to Respondent's I&E. Further, there is no proof of service for Respondent's I&E in the court's file. Because there is no proof of service, the court does not consider Respondent's I&E. The only evidence before the court of Respondent's income is found in Petitioner's I&E, which estimates Respondent's gross monthly income to be \$10,000.00. The court will use this figure to calculate child and spousal support amounts.

The court is in receipt of a CCRC report dated March 27, 2026. A copy of the report was electronically served upon both parties, as well as the Petitioner's attorney, on March 27, 2026, according to the Clerk's Certificate of Mailing filed that same day.

On April 2, 2026, the Petitioner filed a reply declaration concerning the CCRC report, a copy of which was electronically served upon the Respondent that same day according to the proof of service filed April 3, 2026.

Respondent filed a Declaration on April 7, 2026. There is no Proof of Service for this document, and as such, the court has not considered it. Further, the court finds this to be late filed, and would not have considered it on those grounds as well.

The court finds that the recommendations of the CCRC counselor in the March 27, 2026, report are in the best interests of the parties' children and so adopts them as the orders of the court.